

APPENDIX A-1: SCOTUS Interlocutory Stay Applications Analysis (1952-2026)

UNITED STATES DISTRICT COURT

DISTRICT OF MINNESOTA

JOSEPH D. KIRCHNER,
Plaintiff,

v. **Civil Action No. 0:26-cv-00726-PJS-ECW**

KEITH ELLISON, in his official capacity as
Attorney General of the State of Minnesota,
Defendant.

**APPENDIX A-1 TO MEMORANDUM A: COMPLETE INTERLOCUTORY STAY
APPLICATIONS ANALYSIS**

Supporting: Memorandum of Law Re: Supreme Court Shadow Docket Ultra Vires Practice

Cases Analyzed: 134 | Date Range: 1952-2026

I. INTRODUCTION

This Appendix presents the complete case-by-case analysis of 134 Supreme Court emergency docket applications spanning 1952-2026. Each case has been evaluated for compliance with mandatory procedural requirements under Supreme Court Rules and federal statute.

A. Why Binary Analysis Without Scoring

A numerical compliance "score" implies a spectrum where compliance is actually binary—either the statute authorizes the relief or it doesn't; either Rule 14 is followed or it isn't. The factual details speak for themselves.

Each application was evaluated through binary administrative determinations requiring no subjective judgment:

Field	Question	Source
JURIS	Dedicated Jurisdiction Section present?	Rule 14.1(e)(iv)
§2101(f)	Statute cited?	28 U.S.C. § 2101(f)
§1254	Certiorari jurisdiction cited?	28 U.S.C. § 1254
Order Type	Preliminary injunction or final judgment?	Docket entry
Outcome	Granted, denied, or other?	Court order

Data Sources: Official docket entries, application captions, "pursuant to" statements, argument sections, and precedent citations.

II. THE STATUTORY FRAMEWORK

A. 28 U.S.C. § 2101(f) — The "Final Judgment" Requirement

> "In any case in which the **final judgment or decree** of any court is subject to review by the Supreme Court on writ of certiorari, the execution and enforcement of **such judgment or decree** may be stayed for a reasonable time to enable the party aggrieved to obtain a writ of certiorari from the Supreme Court."

The Problem: Preliminary injunctions are, by definition, **not** final judgments. They are interlocutory orders appealable under 28 U.S.C. § 1292(a)(1) precisely *because* they are not final.

B. Supreme Court Rule 14.1(e)(iv) — Jurisdictional Statement Requirement

> "The petition shall contain... **A concise statement of the case setting out the facts material to consideration of the question presented**, with appropriate references to the joint appendix... **and a direct and distinct statement of the grounds on which jurisdiction is invoked**, showing: ... (iv) **the statutory provision believed to confer jurisdiction on this Court.**"

C. The Structural Impossibility

If applications complied with Rule 14.1(e)(iv), they would be forced to state:

> "This Court has jurisdiction under 28 U.S.C. § 2101(f) to stay the district court's **preliminary injunction** pending certiorari review."

This creates insurmountable problems:

1. Order Type Problem — Stating "preliminary injunction" forces acknowledgment that § 2101(f)'s "final judgment" requirement excludes it

2. Statutory Text Problem — Citing § 2101(f) requires addressing its limiting language

3. Precedent Problem — Citing only cases violates Rule 14.1(e)(iv)'s requirement for "statutory provision"

The Rule 14 violations are not careless drafting; they are structurally necessary to conceal the § 2101(f) violation.

III. SUMMARY STATISTICS

Total Cases: 134 | **Date Range:** 1952-2026

A. Distribution by Era

Era	Count	%
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Historical (1952-1999)	21	15.7%
Early Modern (2000-2019)	15	11.2%
COVID/2020	18	13.4%
Post-Barrett (2021-2024)	20	14.9%
Trump II (2025-present)	60	44.8%

B. Rule 14 Compliance by Applicant Type

Type	Total	Jurisdiction Section	§ 2101(f) Cited	Grant Rate
Solicitor General	54	1/54 (1.9%)	1/54 (1.9%)	28/38 (73.7%)
Private Parties	65	31/65 (47.7%)	16/65 (24.6%)	23/57 (40.4%)
State	14	4/14 (28.6%)	3/14 (21.4%)	7/11 (63.6%)
Tribal	1	1/1 (100.0%)	1/1 (100.0%)	N/A

C. The Inverse Correlation

Compliance Level	Representative	Grant Rate
1.9% Rule 14 compliance	Solicitor General	73.7%
47.7% Rule 14 compliance	Private Parties	40.4%

Finding: Lower compliance correlates with higher success—the opposite of what rule of law requires. Rules enforced against private parties are systematically waived for government.

D. Era-Based Grant Rate Analysis

Era	SG Grant Rate	Private Grant Rate	Disparity
Historical (1952-1999)	3/6 (50.0%)	6/12 (50.0%)	+0.0 pts
Early Modern (2000-2019)	5/6 (83.3%)	6/7 (85.7%)	-2.4 pts
COVID/2020	2/2 (100.0%)	4/9 (44.4%)	+55.6 pts
Post-Barrett (2021-2024)	3/7 (42.9%)	4/7 (57.1%)	-14.3 pts
Trump II (2025-present)	15/17 (88.2%)	3/17 (17.6%)	+70.6 pts

E. Disparity Transformation

Period	SG Grant Rate	Private Grant Rate	Disparity
Pre-Trump II (1952-2024)	13/21 (61.9%)	20/35 (57.1%)	+4.8 pts
Trump II (2025-present)	15/17 (88.2%)	3/17 (17.6%)	+70.6 pts
Disparity Change			+65.8 pts

F. Outcomes

Outcome	Count
GRANTED	58
DENIED	43
TBD/PENDING	26
GVR	4
CERT	1
MOOT	1
WITHDRAWN	1

IV. KEY FINDINGS

A. The Single § 2101(f) Citation

Across 54 Solicitor General emergency applications spanning 1971-2026, only one ever cited 28 U.S.C. § 2101(f).

Acting Solicitor General Jeffrey B. Wall's June 1, 2017 application in *Trump v. International Refugee Assistance Project* opened:

> "Pursuant to this Court's Rule 23 and **28 U.S.C. 1651 and 2101(f)**, the Acting Solicitor General... respectfully applies for a stay..."

This was the only time. The template then degraded—subsequent applications omit § 2101(f) entirely.

B. The Vacated Precedent Problem

The Supreme Court's June 26, 2017 Travel Ban stay was **vacated** on October 10, 2017:

> "Because that provision of the Order 'expired by its own terms'... the appeal no longer presents a 'live case or controversy.'... Following our established practice... the judgment is therefore **vacated**... **We express no view on the merits.**"

Trump v. Hawaii, 583 U.S. ____ (Oct. 10, 2017) (per curiam).

Under *United States v. Munsingwear, Inc.*, 340 U.S. 36, 39 (1950), vacatur "strips the [vacated decision] of its precedential effect."

Yet SG applications continue to cite 582 U.S. 571 as binding authority—eight years after judicial destruction.

V. LEGEND

Compliance Symbols:

- ✓ = YES (requirement satisfied)
- X = NO (requirement not satisfied)
- ~ = PARTIAL
- – = N/A (not applicable or documents unavailable)

Key Fields:

- **JURIS** = Dedicated Jurisdiction Section present per Rule 14.1(e)(iv)
- **§2101(f)** = Stay statute cited (limits stays to "final judgment or decree")
- **§1254** = Certiorari jurisdiction statute cited

VI. COMPLETE CASE ANALYSIS

Historical Era (1952-1999) — 21 Cases

1. 343 U.S. 579 | Youngstown Sheet & Tube v. Sawyer | 1952-06 | INJUNCTION AFFIRMED (Govt loses)

Applicant: Private Party (Industry) | Order: Preliminary Injunction

Rule 14: JURIS[–] | §2101(f)[–] | §1254[–]

Notes: Application does not available

2. 346 U.S. 273 | Rosenberg v. United States | 1953-06 | STAY VACATED

Applicant: Private Party (Capital Defendants) | Order: Execution Stay

Rule 14: JURIS[–] | §2101(f)[–] | §1254[–]

Notes: Douglas granted stay; full Court vacated

3. 89SCT1 | Williams v. Rhodes | 1968-09 | GRANTED (AIP) / DENIED (SLP)

Applicant: Political Party | Order: Declaratory Judgment

Rule 14: JURIS[–] | §2101(f)[–] | §1254[–]

Notes: Split decision - AIP on ballot; SLP denied for delay

4. 403 U.S. 713 | NY Times v. United States | 1971-06 | PRIOR RESTRAINT DENIED

Applicant: Federal Government (SG) | Order: Prior Restraint

Rule 14: JURIS[–] | §2101(f)[–] | §1254[–]

Notes: Govt lost - newspapers won

5. 72A795 | Graves v. Barnes | 1972-03 | DENIED

Applicant: State Officials | Order: Declaratory Judgment

Rule 14: JURIS[–] | §2101(f)[–] | §1254[–]

Notes: Powell denied state's stay application

6. 72A378 | Communist Party Indiana v. Whitcomb | 1972-10 | DENIED

Applicant: Political Party | Order: Mandatory Injunction

Rule 14: JURIS[–] | §2101(f)[–] | §1254[–]

Notes: Rehnquist - indisputably clear standard established

1 **7. 73A150 | Holtzman v. Schlesinger | 1973-08 | GRANTED then REVERSED**

2 Applicant: Member of Congress | Order: Stay of Injunction

3 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

4 Notes: Douglas vacated stay; Marshall reversed 6hrs later

6 **8. 73-1766 | United States v. Nixon | 1974-07 | SUBPOENA ENFORCED**

7 Applicant: Federal Government (Special Prosecutor) | Order: Subpoena Enforcement

8 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

9 Notes: Cert before judgment - § 2101(e)

11 **9. A426 | Nebraska Press Assn v. Stuart | 1975-11 | Per curiam merits later**

12 Applicant: Media Organization | Order: Gag Order

13 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

14 Notes: Blackmun in chambers; merits 9-0 reversal

16 **10. 77A162 | National Socialist Party v. Skokie | 1977-06 | GRANTED (reversed state denial)**

17 Applicant: Private Party (Political Org) | Order: Stay of Injunction

18 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

19 Notes: State court case - 5-4

21 **11. A38 | NY Times v. Jascavech | 1978-07 | DENIED by White and Marshall**

22 Applicant: Private Party (Media) | Order: Contempt Order

23 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[-]

24 Notes: Reporter privilege - both Justices denied

26 **12. A70 | Rostker v. Goldberg | 1980-07 | STAY GRANTED**

27 Applicant: Federal Government (SG) | Order: Permanent Injunction

28 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

29 Notes: Brennan granted govt stay; merits reversed 6-3

31 **13. A384 | O'Connor v. Board of Education | 1980-11 | DENIED**

32 Applicant: Private Party (Individual Student) | Order: Stay Vacatur Application

33 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

34 Notes: Stevens deferred to Court of Appeals

36 **14. 82A783 | Karcher v. Daggett | 1982-02 | STAY GRANTED**

37 Applicant: State Government | Order: Declaratory Judgment

38 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

39 Notes: Brennan granted stay; affirmed unconstitutional on merits

41 **15. 83A1066 | Ruckelshaus v. Monsanto | 1983-07 | STAY DENIED**

42 Applicant: Federal Agency (SG) | Order: Permanent Injunction

43 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

44 Notes: Blackmun - govt delay blunted urgency claim

46 **16. 86A480 | Ohio Citizens v. NRC | 1986-12 | DENIED**

47 Applicant: Public Interest Organization | Order: Stay of Mandate

48 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]

49 Interlocutory Authority: None cited

Notes: **SCALIA FOUNDATIONAL OPINION** — Correctly states only final orders stayable under § 2101(f)

17. 88A898 | Lucas v. Townsend | 1988-05 | GRANTED

Applicant: Private Party (Individual Voters) | Order: Injunction Pending Appeal

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

Notes: Kennedy - three-part standard articulated

18. A798 | Turner Broadcasting v. FCC | 1993-04 | DENIED

Applicant: Private Party (Media/Cable) | Order: Injunction vs. Act of Congress

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

Notes: Rehnquist - indisputably clear standard for injunctions

19. 93A426 | INS v. Legalization Assistance | 1993-11 | STAY GRANTED

Applicant: Federal Agency (SG) | Order: Injunction

Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

Notes: O'Connor overrode Ninth Circuit denial

20. A669 | CBS Inc. v. Davis | 1994-02 | TRO VACATED

Applicant: Media Corporation | Order: TRO

Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

Notes: Blackmun - prior restraint vacated

21. 98A53 | Rubin v. United States | 1998-07 | DENIED

Applicant: Federal Government (SG) | Order: Stay Pending Cert

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]

Notes: **Only SG case with Jurisdiction Section**; Rehnquist denied

Early Modern Era (2000-2019) — 15 Cases

22. 00-949 | Bush v. Gore | 2000-12 | STAY GRANTED

Applicant: Private Party (Presidential Candidates) | Order: State Court Judgment

Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]

Interlocutory Authority: Lucas v. Townsend

Notes: **GOLD STANDARD** - Theodore Olson

23. 09A648 | Hollingsworth v. Perry | 2010-01 | STAY GRANTED

Applicant: Private Party (Intervenors) | Order: Stay/Mandamus

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Notes: Prop 8 broadcast; 5-4; supervisory authority; APP NOT PUBLIC

24. 12A644 | Hobby Lobby v. Sebelius | 2012-12 | DENIED

Applicant: Private Party (Corporate) | Order: Injunction Pending Appeal

Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

Notes: Sotomayor denied; APP NOT PUBLIC

25. 13A691 | Little Sisters v. Sebelius | 2013-12 | GRANTED

Applicant: Private Party (Religious Nonprofit) | Order: Emergency Injunction

1 Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]

2 Notes: Sotomayor granted NYE 2013; Becket Fund; APP NOT PUBLIC

3
4 **26. 13A1284 | Wheaton College v. Burwell | 2014-06 | GRANTED**

5 Applicant: Private Party (Religious Nonprofit) | Order: Injunction Pending Appeal

6 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

7 Notes: 6-3; Becket Fund; APP NOT PUBLIC

8
9 **27. 16A1190 | Trump v. IRAP (Travel Ban 1) | 2017-06 | GRANTED IN PART**

10 Applicant: Federal Government (SG) | Order: Preliminary Injunction

11 Rule 14: JURIS[X] | §2101(f)[✓] | §1254[X]

12 Interlocutory Authority: Maryland v. King; Nken v. Holder; Winter v. Natural Resources

13 Notes: **THE ONLY SG APPLICATION EVER TO CITE § 2101(f)** — template then degraded;
14 order **VACATED** October 10, 2017

15
16 **28. 17A550 | Trump v. Hawaii (Travel Ban 3) | 2017-11 | STAY GRANTED**

17 Applicant: Federal Government (SG) | Order: Preliminary Injunction

18 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

19 Interlocutory Authority: Hilton v. Braunskill; Lucas v. Townsend; Maryland v. King; Nken v. Holder;

20 San Diegans v. Paulson; Winter v. Natural Resources

21 Notes: 110 pages; 7-2

22
23 **29. 17A560 | Trump v. IRAP (Travel Ban 2) | 2017-11 | STAY GRANTED**

24 Applicant: Federal Government (SG) | Order: Preliminary Injunction

25 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

26 Interlocutory Authority: Hilton v. Braunskill; Lucas v. Townsend; Maryland v. King; Nken v. Holder;

27 San Diegans v. Paulson; Winter v. Natural Resources

28 Notes: 157 pages; companion to 17A550; 7-2

29
30 **30. 17A790 | North Carolina v. Covington | 2018-01 | TBD**

31 Applicant: State (Legislative Officials) | Order: Redistricting Remedy

32 Rule 14: JURIS[✓] | §2101(f)[-] | §1254[✓]

33 Interlocutory Authority: Hollingsworth v. Perry; Maryland v. King; San Diegans v. Paulson

34 Notes: Paul Clement; direct appeal § 1253

35
36 **31. 18A455 | In Re Dept of Commerce (Census) | 2018-10 | TBD**

37 Applicant: Federal Government (SG) | Order: Discovery/Trial Order

38 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

39 Interlocutory Authority: Hollingsworth v. Perry

40 Notes: Mandamus context

41
42 **32. 18A615 | Trump v. East Bay Sanctuary | 2018-12 | DENIED**

43 Applicant: Federal Government (SG) | Order: Preliminary Injunction

44 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

45 Interlocutory Authority: Hilton v. Braunskill; Maryland v. King; San Diegans v. Paulson; Winter v.

46 Natural Resources

47 Notes: Asylum rule; same formula but DENIED

48
49 **33. 18A625 | Trump v. Karnoski | 2018-12 | STAY GRANTED**

Applicant: Federal Government (SG) | Order: Preliminary Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]
Notes: Transgender military; 5-4; §1254 cited in app

34. 19A60 | Trump v. Sierra Club | 2019-07 | STAY GRANTED

Applicant: Federal Government (SG) | Order: Permanent Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
Interlocutory Authority: Hilton v. Braunskill; Lucas v. Townsend; San Diegans v. Paulson
Notes: Border wall \$2.5B; 5-4

35. 19A545 | Trump v. Mazars | 2019-11 | STAY GRANTED

Applicant: Private (Individual/Corporate) | Order: Stay of Mandate
Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]
Interlocutory Authority: Hollingsworth v. Perry; Maryland v. King; Nken v. Holder; Rostker v. Goldberg
Notes: Personal capacity; Consovoy McCarthy

36. 19A640 | Trump v. Deutsche Bank | 2019-11 | STAY GRANTED

Applicant: Private (Individual/Corporate) | Order: Stay of Mandate
Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]
Interlocutory Authority: Hollingsworth v. Perry; Rostker v. Goldberg
Notes: Personal capacity; companion to Mazars

COVID/2020 Era — 18 Cases

37. 19A785 | DHS v. New York (Public Charge) | 2020-01 | STAY GRANTED

Applicant: Federal Government (SG) | Order: Preliminary Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
Interlocutory Authority: Nken v. Holder
Notes: 5-4; immigration

38. 19A1016 | RNC v. DNC (Wisconsin) | 2020-04 | STAY GRANTED

Applicant: Political Party | Order: Election Procedure
Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]
Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; San Diegans v. Paulson
Notes: Consovoy McCarthy

39. 19A1054 | RNC v. DNC (Wisconsin Primary) | 2020-04 | STAY GRANTED

Applicant: Political Party | Order: Preliminary Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]
Interlocutory Authority: Hilton v. Braunskill; Nken v. Holder
Notes: 5-4; first COVID election case

40. 20A65 | Raysor v. DeSantis (FL Felon Vote) | 2020-07 | DENIED

Applicant: Private Party (Voters) | Order: Application to Vacate Stay
Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
Interlocutory Authority: Maryland v. King; Nken v. Holder
Notes: ~1M voters affected

1
2 **41. 20A90 | Calvary Chapel v. Sisolak | 2020-07 | DENIED**

3 Applicant: Private Party (Religious) | Order: Injunction

4 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

5 Notes: 5-4; pre-Barrett

6
7 **42. 20A34 | FDA v. ACOG (Mifeprax) | 2020-08 | GRANTED (eventually)**

8 Applicant: Federal Government (SG) | Order: Preliminary Injunction

9 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

10 Notes: held in abeyance then granted

11
12 **43. 20A63 | Trump v. Vance II (Tax Returns) | 2020-10 | STAY GRANTED**

13 Applicant: Private Party (Individual) | Order: Subpoena Enforcement

14 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]

15 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; Rostker v. Goldberg

16 Notes: **GOLD STANDARD**; private counsel

17
18 **44. 20A66 | Moore v. Circosta (NC Absentee) | 2020-10 | DENIED**

19 Applicant: State Legislature | Order: Injunction

20 Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

21 Interlocutory Authority: Nken v. Holder

22 Notes: ISL theory preview; extended deadline allowed

23
24 **45. 20A67 | Scarnati v. Boockvar (PA) | 2020-10 | DENIED (4-4)**

25 Applicant: State Legislature | Order: State Court Judgment

26 Rule 14: JURIS[X] | §2101(f)[✓] | §1254[✓]

27 Interlocutory Authority: Hollingsworth v. Perry; Maryland v. King

28 Notes: Barrett not participating; ISL theory

29
30 **46. 20A71 | Andino v. Middleton (SC Witness) | 2020-10 | STAY GRANTED**

31 Applicant: State Officials | Order: Preliminary Injunction

32 Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

33 Interlocutory Authority: Lucas v. Townsend; Maryland v. King

34 Notes: Witness requirement reinstated

35
36 **47. 20A72 | Republican Party PA v. Boockvar | 2020-10 | DENIED**

37 Applicant: Political Party | Order: State Court Judgment

38 Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

39 Interlocutory Authority: Maryland v. King

40 Notes: Post-election follow-up; Thomas dissented from cert denial

41
42 **48. 20A84 | Toth v. Chapman (PA Curing) | 2020-11 | DENIED**

43 Applicant: Private Party (Voters) | Order: State Court Ruling

44 Rule 14: JURIS[X] | §2101(f)[✓] | §1254[X]

45 Interlocutory Authority: Lucas v. Townsend; Maryland v. King

46 Notes: Ballot curing; Bush v Gore EP argument rejected

47
48 **49. 20A87 | Diocese Brooklyn v. Cuomo | 2020-11 | GRANTED**

49 Applicant: Private Party (Religious) | Order: Injunction

1 Rule 14: JURIS[✓] | §2101(f)[-] | §1254[X]
2 Interlocutory Authority: Lucas v. Townsend
3 Notes: Gibson Dunn; 5-4; post-Barrett
4

5 **50. 20A105 | High Plains Harvest v. Polis | 2020-11 | GVR**

6 Applicant: Private Party (Religious) | Order: Injunction

7 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

8 Interlocutory Authority: Lucas v. Townsend

9 Notes: GVR in light of Diocese Brooklyn
10

11 **51. 20A125 | Harvest Rock v. Newsom | 2020-11 | GVR**

12 Applicant: Private Party (Religious) | Order: Injunction

13 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

14 Interlocutory Authority: Nken v. Holder; San Diegans v. Paulson

15 Notes: GVR in light of Diocese Brooklyn
16

17 **52. 20A136 | Robinson v. Murphy (NJ) | 2020-11 | GVR**

18 Applicant: Private Party (Religious) | Order: Injunction

19 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

20 Interlocutory Authority: San Diegans v. Paulson

21 Notes: Interfaith; GVR in light of Diocese Brooklyn
22

23 **53. 20A98 | Kelly v. Pennsylvania (Election) | 2020-12 | DENIED**

24 Applicant: Private Party (Congressman) | Order: Injunction

25 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]

26 Notes: 2020 election challenge denied
27

28 **54. 20A134 | Gish v. Newsom (COVID) | 2020-12 | GVR**

29 Applicant: Private Party (Religious) | Order: Injunction

30 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

31 Interlocutory Authority: Nken v. Holder

32 Notes: First CA COVID lawsuit; GVR in light of South Bay II
33
34

35 **Post-Barrett Era (2021-2024) — 20 Cases**

36 **55. 20A128 | South Bay Pentecostal v. Newsom II | 2021-01 | GRANTED IN PART**

37 Applicant: Private Party (Religious) | Order: Injunction

38 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

39 Notes: Indoor ban enjoined; singing ban not; Barrett/Kavanaugh concurrence
40

41 **56. 20A96 | FDA v. ACOG (Abortion Pill) | 2021-01 | STAY GRANTED**

42 Applicant: Federal Government (SG) | Order: Preliminary Injunction

43 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

44 Notes: 6-3; Roberts statement; Sotomayor dissent
45

46 **57. 20A138 | Gateway City Church v. Newsom | 2021-02 | GRANTED**

47 Applicant: Private Party (Religious) | Order: Injunction

48 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Notes: 6-3; Santa Clara County; clearly dictated by South Bay II

58. 20A151 | Tandon v. Newsom | 2021-03 | GRANTED

Applicant: Private Party (Religious) | Order: Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Lucas v. Townsend; Nken v. Holder

Notes: 5-4; **LANDMARK** - Most Favored Nation doctrine; major law via shadow docket

59. 21A21 | Texas v. Biden (MPP) | 2021-08 | DENIED

Applicant: Federal Government (SG) | Order: Permanent Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Notes: Biden admin forced to reinstate Trump MPP policy

60. 21A24 | Whole Womans Health v. Jackson (SB8) | 2021-08 | DENIED

Applicant: Private Party (Healthcare) | Order: Injunction/Stay Vacatur

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Hilton v. Braunskill; Maryland v. King; Nken v. Holder

Notes: 5-4; Texas SB8 abortion ban allowed to take effect

61. 21A85 | United States v. Texas (SB8) | 2021-10 | DENIED cert granted

Applicant: Federal Government (SG) | Order: Application to Vacate Stay

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder

Notes: SB8 constitutional crisis

62. 21A90 | Does v. Mills (ME Vaccine) | 2021-10 | DENIED

Applicant: Private Party (Healthcare Workers) | Order: Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Notes: 6-3; Gorsuch dissent; Maine vaccine mandate

63. 21A240 | Biden v. Missouri (CMS Vaccine) | 2021-12 | STAY GRANTED

Applicant: Federal Government (SG) | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder; San Diegans v. Paulson

Notes: 5-4; CMS healthcare mandate UPHOLD

64. 21A244 | NFIB v. OSHA (Vaccine Mandate) | 2021-12 | STAY GRANTED

Applicant: Private/State Coalition | Order: Agency Action (ETS)

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

Notes: 6-3; major questions doctrine; ~84M workers affected

65. 21A247 | Ohio v. OSHA (Vaccine Mandate) | 2021-12 | STAY GRANTED

Applicant: State Coalition (27 states) | Order: Agency Action (ETS)

Rule 14: JURIS[X] | §2101(f)[✓] | §1254[✓]

Interlocutory Authority: Hilton v. Braunskill; Maryland v. King; Nken v. Holder

Notes: Consolidated with NFIB; state federalism challenge

66. 21A375 | Merrill v. Milligan (AL Redistricting) | 2022-02 | STAY GRANTED

Applicant: State Officials | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Hollingsworth v. Perry; Rostker v. Goldberg

Notes: 5-4; VRA; **LATER REVERSED on merits 5-4**

67. 21A477 | Austin v. Navy SEALs (Vaccine) | 2022-03 | GRANTED IN PART

Applicant: Federal Government (SG) | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder

Notes: 6-3; military deference; deployment yes discharge no

68. 22A17 | US v. Texas (Immigration Guidance) | 2022-07 | DENIED cert granted

Applicant: Federal Government (SG) | Order: Judgment

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder

Notes: DHS enforcement priorities; 8-1 on merits

69. 22A444 | Biden v. Nebraska (Student Loans) | 2022-11 | DENIED cert granted

Applicant: Federal Government (SG) | Order: Injunction Pending Appeal

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Maryland v. King; Winter v. Natural Resources

Notes: §2101(e) cited; student loan forgiveness struck down

70. 22A544 | Arizona v. Mayorkas (Title 42) | 2022-12 | STAY GRANTED

Applicant: State Coalition | Order: Order Vacating Agency

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; San Diegans v. Paulson

Notes: 5-4; Gorsuch dissent with liberals; mooted May 2023

71. 23A745 | Trump v. United States (Immunity) | 2024-02 | CERT GRANTED

Applicant: Private Party (Individual) | Order: Mandate/Immunity Ruling

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Notes: D. John Sauer pre-SG; historic immunity case

72. 23A763 | Labrador v. Poe (ID Transgender) | 2024-02 | TBD

Applicant: State (Attorney General) | Order: Preliminary Injunction

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]

Notes: Idaho AG; ADF co-counsel

73. 24A348 | YAPP USA v. NLRB | 2024-10 | DENIED

Applicant: Private Party (Corporate) | Order: Writ of Injunction

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Nken v. Holder

Notes: one-day denial by Kavanaugh

74. 24A666 | Trump v. New York (Hush Money) | 2024-12 | TBD

Applicant: Private Party (Individual) | Order: Stay of State Proceedings

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Notes: D. John Sauer pre-SG

Trump II Era (2025-present) — 60 Cases

75. 24A790 | Bessent v. Dellinger (Special Counsel) | 2025-02 | MOOT

Applicant: Federal Government (SG) | Order: TRO

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Nken v. Holder; Rostker v. Goldberg

Notes: Acting SG Harris

76. 24A808 | Alpine Securities v. FINRA | 2025-02 | DENIED

Applicant: Private Party (Corporate) | Order: Judgment

Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[X]

Interlocutory Authority: Hollingsworth v. Perry

Notes: EXEMPLARY private; Cooper Kirk

77. 24A831 | State Dept v. AIDS Vaccine I | 2025-02 | DENIED

Applicant: Federal Government (SG) | Order: TRO

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Hollingsworth v. Perry

Notes: foreign aid

78. 24A852 | Rana v. Engleman (Extradition) | 2025-02 | DENIED

Applicant: Private Party | Order: Denial of Stay

Rule 14: JURIS[~] | §2101(f)[✓] | §1254[X]

Interlocutory Authority: Hilton v. Braunskill; Nken v. Holder; San Diegans v. Paulson

Notes: EXEMPLARY 2101(f) citation

79. 24A884 | Trump v. CASA (Birthright) | 2025-02 | PENDING

Applicant: Federal Government (SG) | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder; Rostker v. Goldberg; Hilton v. Braunskill

Notes: 14th Amendment

80. 24A885 | Trump v. Washington (Birthright) | 2025-02 | PENDING

Applicant: Federal Government (SG) | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder; Rostker v. Goldberg; Hilton v. Braunskill

Notes: 9th Circuit

81. 24A886 | Trump v. New Jersey (Birthright) | 2025-02 | PENDING

Applicant: Federal Government (SG) | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder; Rostker v. Goldberg; Hilton v. Braunskill

Notes: 3rd Circuit

82. 24A904 | OPM v. AFGE (Probationary) | 2025-03 | GRANTED

Applicant: Federal Government (SG) | Order: Preliminary Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Nken v. Holder
Notes: 16K+ employees

83. 24A910 | DOE v. California (Teacher Grants) | 2025-03 | GRANTED

Applicant: Federal Government (SG) | Order: TRO

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Nken v. Holder

Notes: Kagan dissent

84. 24A921 | Principle Homecare v. McDonald | 2025-03 | DENIED

Applicant: Private Party | Order: Denial of PI

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

Notes: Gibson Dunn

85. 24A931 | Trump v. J.G.G. (Alien Enemies) | 2025-03 | PENDING

Applicant: Federal Government (SG) | Order: Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; Hilton v. Braunskill

Notes: 1798 Act

86. 24A949 | Noem v. Abrego Garcia | 2025-04 | PARTIAL GRANT

Applicant: Federal Government (SG) | Order: Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

Notes: admin error

87. 24A966 | Trump v. Wilcox (NLRB/MSPB) | 2025-04 | GRANTED

Applicant: Federal Government (SG) | Order: Judgment

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Hilton v. Braunskill; Nken v. Holder; Winter v. Natural Resources

Notes: removal power

88. 24A989 | Espinoza v. Bondi | 2025-04 | DENIED

Applicant: Private Party | Order: Removal Order

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder

Notes: App verified - no compliance citations

89. 24A1007 | AARP v. Trump (Alien Enemies) | 2025-04 | TBD

Applicant: Private Party | Order: Affirmative Relief

Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]

Interlocutory Authority: Nken v. Holder

Notes: ACLU

90. 24A1030 | United States v. Shilling | 2025-04 | GRANTED

Applicant: Federal Government (SG) | Order: Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

Interlocutory Authority: Rostker v. Goldberg; Nken v. Holder

Notes: transgender ban

1
2 **91. 24A1031 | Cherwitz v. United States | 2025-04 | DENIED**

3 Applicant: Private Party | Order: Mandamus Denial

4 Rule 14: JURIS[X] | §2101(f)[~] | §1254[✓]

5 Interlocutory Authority: Hollingsworth v. Perry

6
7 **92. 24A1051 | Libby v. Fecteau (ME Legislature) | 2025-05 | GRANTED**

8 Applicant: Private Party | Order: Preliminary Injunction

9 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]

10 Interlocutory Authority: Hollingsworth v. Perry

11 Notes: EXEMPLARY private

12
13 **93. 24A1059 | Noem v. National TPS Alliance | 2025-05 | GRANTED**

14 Applicant: Federal Government (SG) | Order: APA Order

15 Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

16 Interlocutory Authority: Nken v. Holder

17 Notes: TPS

18
19 **94. 24A1063 | SSA v. AFSCME | 2025-05 | GRANTED**

20 Applicant: Federal Government (SG) | Order: Preliminary Injunction

21 Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

22 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; Winter v. Natural Resources

23 Notes: federal RIF

24
25 **95. 24A1079 | Noem v. Svitlana Doe | 2025-05 | GRANTED**

26 Applicant: Federal Government (SG) | Order: Preliminary Injunction

27 Rule 14: JURIS[X] | §2101(f)[X] | §1254[✓]

28 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

29 Notes: parole

30
31 **96. 24A1106 | Trump v. AFGE | 2025-05 | TBD**

32 Applicant: Federal Government (SG) | Order: Preliminary Injunction

33 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

34 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

35 Notes: layoffs

36
37 **97. 24A1122 | DOGE v. CREW | 2025-05 | GRANTED**

38 Applicant: Federal Government (SG) | Order: Discovery Orders

39 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

40 Interlocutory Authority: Hollingsworth v. Perry

41 Notes: sua sponte cert

42
43 **98. 24A1153 | DHS v. D.V.D. | 2025-05 | GRANTED**

44 Applicant: Federal Government (SG) | Order: Preliminary Injunction

45 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

46 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

47 Notes: 3rd country

48
49 **99. 24A1154 | Highland Capital v. NexPoint | 2025-05 | DENIED**

Applicant: Private Party | Order: Mandate
Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[X]
Interlocutory Authority: Hollingsworth v. Perry
Notes: EXEMPLARY private

100. 24-1287 | Learning Resources v. Trump Tariffs | 2025-06 | TBD

Applicant: Private Party | Order: Motion to Expedite
Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]
Notes: IEEPA tariffs; not stay

101. 24A1174 | Trump v. AFGE Layoffs | 2025-06 | TBD

Applicant: Federal Government (SG) | Order: Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

102. 24A1203 | McMahon v. New York | 2025-06 | GRANTED

Applicant: Federal Government (SG) | Order: Preliminary Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; Hilton v. Braunskill; Maryland v. King
Notes: Ed Dept; 6-3

103. 24A1218 | Lalama Gomez v. United States | 2025-06 | DENIED

Applicant: Private Party | Order: Mandate
Rule 14: JURIS[-] | §2101(f)[-] | §1254[-]
Notes: Sotomayor denied; extradition to Ecuador; APP NOT PUBLIC

104. 24A1269 | Uthmeier v. Florida Immigrant | 2025-06 | DENIED

Applicant: State (Attorney General) | Order: Preliminary Injunction
Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[X]
Interlocutory Authority: Maryland v. King
Notes: EXEMPLARY state AG

105. 24A1285 | Doe John v. Seattle PD | 2025-06 | DENIED

Applicant: Private Party | Order: State Court Mandate
Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]
Notes: EXEMPLARY 1257(a)

106. 25A11 | Trump v. Boyle (DOE) | 2025-07 | TBD

Applicant: Federal Government (SG) | Order: Injunction
Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; Hilton v. Braunskill

107. 25A62 | Turtle Mountain v. Howe | 2025-07 | TBD

Applicant: Tribal | Order: Mandate
Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[X]
Interlocutory Authority: Hollingsworth v. Perry
Notes: **GOLD STANDARD**; VRA tribal

1 **108. 25A97 | NetChoice v. Fitch (MS Social Media) | 2025-07 | TBD**

2 Applicant: Private Party | Order: Stay of PI

3 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]

4 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; San Diegans v. Paulson

5 Notes: **GOLD STANDARD**

6
7 **109. 25A103 | NIH v. Am Public Health Assn | 2025-07 | TBD**

8 Applicant: Federal Government (SG) | Order: Injunction

9 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

10 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

11
12 **110. 25A169 | Noem v. Perdomo | 2025-08 | TBD**

13 Applicant: Federal Government (SG) | Order: Injunction

14 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

15 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

16
17 **111. 25A227 | Trump v. Global Health Council | 2025-08 | TBD**

18 Applicant: Federal Government (SG) | Order: Preliminary Injunction

19 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

20 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

21
22 **112. 25A231 | Avon Capital v. Universitas | 2025-08 | TBD**

23 Applicant: Private Party | Order: Disbursement Order

24 Rule 14: JURIS[X] | §2101(f)[✓] | §1254[X]

25 Notes: pro se

26
27 **113. 25A234 | South Carolina v. Doe | 2025-08 | TBD**

28 Applicant: State | Order: Injunction

29 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

30 Interlocutory Authority: Nken v. Holder

31 Notes: state SG

32
33 **114. 25A264 | Trump v. Slaughter (FTC) | 2025-09 | GRANTED**

34 Applicant: Federal Government (SG) | Order: Judgment

35 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

36 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder; Hilton v. Braunskill

37 Notes: FTC removal

38
39 **115. 25A269 | State Dept v. AIDS Vaccine II | 2025-09 | GRANTED**

40 Applicant: Federal Government (SG) | Order: Preliminary Injunction

41 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

42 Interlocutory Authority: Nken v. Holder

43 Notes: PEPFAR

44
45 **116. 25A276 | Martinez-Guardado v. Kobayashi | 2025-09 | DENIED**

46 Applicant: Private Party | Order: Extradition Order

47 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[X]

48 Interlocutory Authority: Maryland v. King

49 Notes: EXEMPLARY Fed Defender

1
2 **117. 25A287 | NJ Transit v. Colt | 2025-09 | GRANTED**

3 Applicant: State | Order: Trial Date

4 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

5 Interlocutory Authority: Hollingsworth v. Perry; Maryland v. King; Nken v. Holder

6 Notes: state SG

7
8 **118. 25A312 | Trump v. Cook (Federal Reserve) | 2025-09 | PENDING**

9 Applicant: Federal Government (SG) | Order: Preliminary Injunction

10 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

11 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

12 Notes: Fed Board

13
14 **119. 25A319 | Trump v. Orr (Passport Sex) | 2025-09 | GRANTED**

15 Applicant: Federal Government (SG) | Order: Injunction

16 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

17 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

18
19 **120. 25A322 | We the Patriots v. Ventura USD | 2025-09 | DENIED**

20 Applicant: Private Party | Order: Denial of Relief

21 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]

22 Interlocutory Authority: Hollingsworth v. Perry; Winter v. Natural Resources

23 Notes: **GOLD STANDARD**; vaccine

24
25 **121. 25A326 | Noem v. National TPS Alliance II | 2025-09 | GRANTED**

26 Applicant: Federal Government (SG) | Order: Summary Judgment

27 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

28 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

29
30 **122. 25A354 | Google v. Epic Games | 2025-09 | GRANTED**

31 Applicant: Private Party | Order: Permanent Injunction

32 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

33 Interlocutory Authority: Hollingsworth v. Perry

34 Notes: antitrust

35
36 **123. 25A376 | Castro v. Guevara | 2025-10 | DENIED**

37 Applicant: Private Party | Order: Mandate

38 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[X]

39 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder

40 Notes: Hague

41
42 **124. 25A402 | Hess v. Oakland County | 2025-10 | DENIED**

43 Applicant: Private Party | Order: Denial of Relief

44 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]

45 Interlocutory Authority: Lucas v. Townsend

46 Notes: 1A; cites §2101(e) not (f)

47
48 **125. 25A443 | Trump v. Illinois National Guard | 2025-10 | PENDING**

49 Applicant: Federal Government (SG) | Order: Injunction

Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
 Interlocutory Authority: Hollingsworth v. Perry; Rostker v. Goldberg

126. 25A476 | **Murray Enterprises v. NYC** | 2025-10 | **DENIED**
 Applicant: Private Party | Order: Denial of Injunction
 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]

127. 25A478 | **Blanche v. Perlmutter** | 2025-10 | **PENDING**
 Applicant: Federal Government (SG) | Order: Interlocutory Injunction
 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
 Interlocutory Authority: Hollingsworth v. Perry; Nken v. Holder
 Notes: Copyright

128. 25A515 | **Duran v. United States** | 2025-10 | **GRANTED then VACATED**
 Applicant: Private Party | Order: Judgment
 Rule 14: JURIS[✓] | §2101(f)[✓] | §1254[✓]
 Notes: **EXEMPLARY** - §2101(f) properly cited; Marcos human rights

129. 25A539 | **Rollins v. RI Churches (SNAP)** | 2025-11 | **WITHDRAWN**
 Applicant: Federal Government (SG) | Order: TRO
 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
 Interlocutory Authority: Hollingsworth v. Perry
 Notes: \$4B

130. 25A561 | **Chamber of Commerce v. Sanchez** | 2025-11 | **PENDING**
 Applicant: Private Party | Order: Denial of Injunction
 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[✓]
 Interlocutory Authority: Nken v. Holder
 Notes: CA climate; cites §2101(e) not (f)

131. 25A608 | **Abbott v. LULAC (TX Redistrict)** | 2025-11 | **GRANTED**
 Applicant: State | Order: Preliminary Injunction
 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]
 Interlocutory Authority: Hollingsworth v. Perry; Maryland v. King; Nken v. Holder
 Notes: state SG; three-judge court §1253 not §1254

132. 25A662 | **Margolin v. NAIJ** | 2025-12 | **DENIED**
 Applicant: Federal Government (SG) | Order: Mandate
 Rule 14: JURIS[X] | §2101(f)[X] | §1254[X]
 Interlocutory Authority: Hollingsworth v. Perry
 Notes: rare SG denial

133. 25A810 | **Mirabelli v. Bonta** | 2026-01 | **PENDING**
 Applicant: Private Party | Order: Interlocutory Stay
 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]
 Interlocutory Authority: San Diegans v. Paulson

134. 25A839 | **Tangipa v. Newsom** | 2026-01 | **DENIED**
 Applicant: Private Party | Order: Denial of Injunction

1 Rule 14: JURIS[✓] | §2101(f)[X] | §1254[X]
2 Interlocutory Authority: Nken v. Holder
3 Notes: Three-judge court §1253 not §1254; contrast Abbott
4
5

6 VII. CONCLUSION

7 The data establishes:
8

- 9 **1. Solicitor General: 1.9% Rule 14 Compliance** — One of 54 SG applications contains proper
10 jurisdictional statements citing statutory authority (the June 2017 Travel Ban application, later
11 vacated).
12
13 **2. Private Parties: 47.7% Compliance** — Private parties consistently demonstrate proper
14 compliance is feasible.
15
16 **3. Inverse Correlation** — 1.9% compliance achieves 73.7% grant rate; 47.7% compliance achieves
17 40.4% grant rate.
18
19 **4. Trump II Era Disparity** — +70.6 percentage point disparity between SG and private party
20 success, compared to +4.8 points pre-2025.
21
22 **5. Structural Necessity** — The Rule 14 violations are not careless drafting; they are structurally
23 necessary to conceal that § 2101(f) does not authorize stays of preliminary injunctions.
24

25 The facts speak for themselves.
26
27

28 CERTIFICATION

29 I, Joseph D. Kirchner, certify that this analysis accurately represents the research methodology and
30 findings documented herein.
31

32 **Dated:** March 2026
33
34

35 **JOSEPH D. KIRCHNER**
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42

43 *Supporting Memorandum A*
44 *See also* ECF No. 13-81, *Kirchner v. Johnson*, No. 1:25-cv-02735-ACR (D.D.C.)
45